

Analysis

Trustee Judie D. Moreno (“Trustee” or “Moreno”) opposes the motion, arguing permitting withdrawal is unsupported by generalized claims of conflict, and will cause undue delay and prejudice to the Trustee and other beneficiaries. The Court disagrees.

“Where issues of confidentiality prevent “counsel from further disclosure and the court [accepts] the good faith of counsel's representations, the court should find the conflict sufficiently established and permit withdrawal.” [Citations.]” *Manfredi, supra*, at 1133.

At bar, counsel for Mr. Hernandez avers the grounds for withdrawal involve confidential attorney-client communications and matters protected by privilege, which details cannot be provided in public filing to avoid prejudice to the client. Capdevielle Decl., ¶ 5. Counsel also avers he has not brought the motion for purposes of delay. Capdevielle Decl., ¶ 6. The Court finds counsel’s declaration in support of his motion to sufficiently set forth information which results in a finding Mr. Capdevielle can no longer effectively represent Mr. Mario Hernandez.

Accordingly, the motion is granted. Counsel shall provide a proposed order utilizing Judicial Council form MC-053 within five (5) days.

3. PR00001042 In Re Vazquez Lizarraga, Carlo Alexandre

Appearances required. The Court wishes to inquire of counsel for the proposed conservatee as to whether there is any objection to the Petition and to clarify powers requested.